

Nepal v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 7 April 2022 · Writ-C No. 33668 of 2021 · **Writ disposed of; petitioner relegated to paragraph 6.8 objection.**

HEADNOTE

A writ challenging a recovery citation is disposed of without opinion on merits, with liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 before respondent No. 4 within three weeks, to be decided by a reasoned speaking order within four weeks after hearing.

FACTUAL SUMMARY

Nepal filed a writ in the Allahabad High Court challenging a recovery citation. The petition was adjourned on 17 December 2021. On 7 April 2022 none appeared for the petitioner. Counsel for respondent Nos. 2 and 4 stated on instructions that the petitioner could object to the citation before respondent No. 4 under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, and that any such objection would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation as alternate remedy

HOLDING

Without expressing any opinion on the merits, the writ petition challenging the recovery citation is disposed of with liberty to the petitioner to submit an objection before respondent No. 4 under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks; if so submitted, respondent No. 4 shall decide it by a reasoned and speaking order within the next four weeks after affording a reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court disposed of the writ without examining the recovery citation on merits and relegated the consumer to the statutory objection under paragraph 6.8 before respondent No. 4, with a time-bound speaking-order direction. ¶ 1

assessment-6.8-alternate-remedy Counsel's statement that an objection under paragraph 6.8 lay against the impugned recovery citation was accepted as the appropriate statutory course in place of writ adjudication. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHALLENGE TO THE RECOVERY CITATION

The Court expressly declined to express any opinion on the merits. ¶ 1